

FL-23-003394 GODINEZ VS HERNANDEZ

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-09-28

Motion: Attorney for Respondent's Motion to Be Relieved—HEARING REQUIRED. The grounds for involuntary withdrawal are sufficient and stated with sufficiently general language to avoid divulging privileged or confidential communications. Given the recent rescheduling of imminent trials or hearings on the merits of any substantive matters, it does not appear that granting the motion is likely to result in prejudice to the client. That said, counsel's declaration and filed proofs of service on the client do not satisfy the requirement of current address confirmation and counsel will need to appear as an officer of the Court to address the Court's concerns. (Cal. Rules of Ct., rule 3.1362(d) ["Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies"].)

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: ddb570e9c947e37de2dcc7e7ea36bb9b2235010e14532b0981fecc8c9cb87a3

FL-23-003394 – GODINEZ VS HERNANDEZ

Attorney for Respondent's Motion to Be Relieved—HEARING REQUIRED.

The grounds for involuntary withdrawal are sufficient and stated with sufficiently general language to avoid divulging privileged or confidential communications. Given the recent rescheduling of imminent trials or hearings on the merits of any substantive matters, it does not appear that granting the motion is likely to result in prejudice to the client. That said, counsel's declaration and filed proofs of service on the client do not satisfy the requirement of current address confirmation and counsel will need to appear as an officer of the Court to address the Court's concerns. (Cal. Rules of Ct., rule 3.1362(d) ["Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies"].)